

Independent Contractor Agreement (Driver)

This Agreement is entered into by and between **DELIVERMEE Tech Corp.**, an Ontario corporation (“Company”), and the undersigned driver (“Contractor”).

1. Engagement

Contractor agrees to provide delivery and moving services to users of the DeliverMee platform as an independent contractor, not as an employee.

1.1) Eligibility & Age Requirement

Contractor represents and warrants that they are at least 18 years of age, hold a valid driver’s license, and are legally permitted to perform delivery services in the jurisdiction in which they operate.

2. Independent Contractor Status

- Contractor is not an employee of DeliverMee.
- Contractor is responsible for their own taxes, insurance, and expenses.
- Nothing in this Agreement shall be interpreted as creating an employment relationship.

2.1 Acknowledgment of Independent Contractor Status

Contractor acknowledges that they are an independent contractor and not an employee of DeliverMee. Contractor is not entitled to any employee benefits, including but not limited to vacation pay, sick leave, health insurance, or pension plans. Contractor has no authority to bind DeliverMee or incur any obligations on its behalf.

3. Responsibilities

Contractor shall:

- Maintain a valid driver’s license.
- Use a registered and insured vehicle.
- Comply with traffic laws and safety regulations.
- Provide professional, courteous service to customers.

3.1 Delivery Location & Entry Disclaimer

Contractor agrees that deliveries must be completed by placing items at the driveway, doorstep, or designated exterior location of the delivery address.

Contractor shall not enter the customer's home, apartment, or any enclosed space.

Should Contractor choose to enter a customer's premises, they do so entirely at their own risk. DeliverMee shall not be liable for:

- Injuries sustained inside or on private property
- Property damage or loss
- Any disputes resulting from entry

Contractor releases DeliverMee from any liability related to voluntary entry.

3.2 Conduct and Safety

Contractor agrees to:

- Refrain from using substances, smoking, or behaving inappropriately during any delivery.
- Treat all customers with respect and maintain clear and professional communication.
- Follow all applicable laws and regulations, including traffic, parking, and safety protocols.

3.3 Use of Platform and Devices

Contractor agrees to:

- Use the DeliverMee app to accept, manage, and complete jobs.
- Provide their own smartphone with sufficient data and GPS capability.
- Maintain responsibility for their own fuel, tolls, equipment, and mobile device performance.

3.4 Equipment Maintenance and Condition

Contractor is responsible for ensuring that their vehicle is in good working order, properly maintained, and complies with all applicable safety standards and laws. Contractor shall not use any vehicle that is unsafe or unfit for delivery services.

3.5 Delivery Equipment and Responsibility

The Contractor acknowledges and agrees that they are solely responsible for providing, maintaining, and operating any and all equipment necessary to perform delivery services, including but not limited to moving tools, straps, blankets, dollies, and protective materials. DeliverMee Inc. shall not be responsible for supplying or reimbursing any such equipment.

By accepting a delivery assignment through the DeliverMee platform, the Contractor affirms that they have the appropriate vehicle, equipment, and ability to complete the delivery in a safe, secure, and professional manner. It is the Contractor's responsibility to assess whether they can reasonably and safely complete a delivery prior to accepting the assignment.

The Contractor assumes full responsibility and liability for the proper handling, transportation, and delivery of items. DeliverMee Inc. shall not be held liable for any damage to goods or property arising from the Contractor's failure to use adequate equipment or exercise due care.

3.6 Compliance with Laws

Contractor agrees to comply with all applicable federal, provincial, and municipal laws, regulations, permits, and licensing requirements related to the delivery services provided under this Agreement.

3.7 App Store & Platform Compliance

Contractor agrees to comply with all applicable platform rules and requirements imposed by Apple, Google, or other application distribution services in connection with their use of the DeliverMee App.

4. Payment

- Contractor is paid per delivery job completed.
- DeliverMee may deduct a platform fee before payout.
- Contractor is responsible for reporting income and remitting taxes.

5. Insurance & Liability

Contractor must maintain active auto insurance and liability coverage. DeliverMee does not provide insurance for the Contractor or their vehicle.

5.1 Insurance Documentation

The Contractor shall, at their own expense, must maintain automobile liability insurance on all vehicles used in connection with DeliverMee services in at least the minimum amounts required by law. The Contractor acknowledges that personal auto insurance may not provide coverage for commercial or delivery activities and agrees to obtain all necessary endorsements or commercial insurance. DeliverMee does not provide primary insurance coverage for Contractors. The Contractor shall provide proof of such insurance upon request and shall immediately notify DeliverMee of any lapse or cancellation. The Contractor is solely responsible for any costs, damages, or claims arising from accidents or incidents while performing services, and agrees to indemnify and hold harmless DeliverMee from any related liability.

6. Term and Termination

This Agreement remains in effect until terminated by either party. Either party may terminate at any time, with or without cause.

6.1 Termination for Cause

DeliverMee may immediately terminate this Agreement if the Contractor:

- Repeatedly receives customer complaints.
- Violates platform policies or applicable laws.
- Commits fraud, harassment, theft, or engages in unsafe conduct.
- Endangers the safety or property of others.

7. Confidentiality

Contractor agrees to protect DeliverMee's confidential information and refrain from disclosing any sensitive data or operational details to third parties.

8. Non-Solicitation

Contractor agrees not to directly solicit or accept delivery work from DeliverMee customers outside of the Platform for a period of **12 months** after their last completed job with DeliverMee.

9. Indemnity

Contractor shall indemnify, defend, and hold harmless DeliverMee, its affiliates, officers, directors, employees, and agents from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable legal fees) arising out of or related to: (a) the Contractor's performance of services; (b) the Contractor's breach of this Agreement; or (c) violation of applicable laws.

9.1 Limitation of Liability

To the maximum extent permitted by applicable law, DeliverMee shall not be liable for any indirect, incidental, consequential, special, or punitive damages arising out of or in connection with this Agreement or the delivery services performed by Contractor.

10. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Ontario, Canada.

11. Entire Agreement

This Agreement represents the complete understanding between the parties and supersedes all prior agreements, oral or written, relating to the subject matter.

12. Background Check Consent

Contractor agrees that DeliverMee may conduct background checks or driver history reviews, either directly or through third-party services such as Checkr. Contractor provides consent to such screening and agrees to provide any required documentation to facilitate this process. Employment is contingent on passing applicable screening requirements.

13. Media Uploads and Proof of Delivery

Contractor acknowledges that DeliverMee may require photo documentation for proof of delivery (e.g., a photo of the delivered item at drop-off location). These images must be accurate and timely. Contractor grants DeliverMee a royalty-free, non-exclusive license to use these images for verification, support, or dispute resolution.

14. Surge Pricing and Incentives

DeliverMee may offer surge pricing, bonuses, or incentives to Contractors during periods of high demand. Eligibility, rates, and criteria are subject to change at DeliverMee's sole discretion. These bonuses are not guaranteed and are provided on a promotional basis only.

15. Force Majeure

DeliverMee shall not be liable for any delay or failure to perform under this Agreement due to events beyond its control, including natural disasters, government actions, internet outages, or other unforeseen circumstances.

16. Amendment

DeliverMee reserves the right to update this Agreement at any time, with notice provided through the Platform or via email. Continued use after updates constitutes acceptance of the revised Agreement.

17. Dispute Resolution

Any dispute, controversy, or claim arising out of or relating to this Agreement shall first be submitted to mediation in the Province of Ontario before any party may initiate litigation. If the dispute is not resolved through mediation within 30 days, either party may pursue other remedies available by law.

18. Notice

All notices under this Agreement must be in writing and delivered by email or via the DeliverMee platform. Notices are effective upon receipt by the receiving party.

19. Safety Training and Policies

Contractor agrees to complete any safety training provided by DeliverMee and to comply with all operational policies, procedures, and guidelines communicated to Contractor. DeliverMee may update such policies from time to time.

20. Data Privacy Consent

Contractor consents to the collection, use, and disclosure of their personal information as necessary to perform delivery services, comply with legal obligations, and manage their relationship with DeliverMee in accordance with DeliverMee's Privacy Policy.

21. Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall continue in full force and effect.

22. Intellectual Property Rights

Contractor agrees that any and all content, inventions, processes, ideas, methods, materials, or documentation developed, created, or contributed in connection with the use of the DeliverMee Platform or while providing services under this Agreement (collectively, “Work Product”) shall be the sole and exclusive property of DeliverMee Inc., to the extent permitted by law.

22.1 Work Made for Hire and Assignment of Rights

To the extent any Work Product does not qualify as a “work made for hire” under applicable law, Contractor hereby irrevocably assigns to DeliverMee all rights, title, and interest in such Work Product, including all intellectual property rights therein. Contractor also waives any moral rights in such Work Product to the fullest extent permitted by law.

22.2 Use of Platform Content

Contractor agrees not to copy, replicate, reverse engineer, or use any part of the DeliverMee Platform—including branding, software, data, images, or technology—for any purpose other than performing delivery services through the Platform. Any unauthorized use of DeliverMee’s intellectual property is strictly prohibited.

22.3 Pre-Existing IP

If Contractor intends to use any pre-existing intellectual property while performing services under this Agreement, Contractor must disclose such materials in writing and receive prior written approval from DeliverMee. If no such disclosure is made, Contractor represents and warrants that all Work Product is original and developed in connection with this Agreement.

22.4 Cooperation

Contractor agrees to cooperate with DeliverMee, both during and after the term of this Agreement, to execute documents or take actions necessary to protect DeliverMee’s ownership of intellectual property created under this Agreement.

23. Use of Subcontractors

Contractor shall not assign or delegate any delivery tasks to third parties or subcontractors without the express written consent of DeliverMee. Any unauthorized delegation may result in immediate termination of this Agreement and may subject the Contractor to liability for damages or violations resulting from the third party's actions.

24. Ongoing Background Screening

Contractor acknowledges that DeliverMee may, at its sole discretion, conduct periodic background or driving record checks during the term of this Agreement. Continued access to the Platform is contingent upon maintaining a satisfactory background status

25. Temporary Suspension

DeliverMee reserves the right to suspend Contractor's access to the Platform at any time, with or without notice, for investigation of conduct, complaints, safety concerns, or suspected policy violations. Suspension does not automatically terminate this Agreement but may result in review or corrective action.

26. Non-Disparagement

Contractor agrees not to make any false, defamatory, or misleading statements—publicly or privately—about DeliverMee, its services, customers, or personnel during or after the term of this Agreement. This includes statements on social media, public forums, or to competitors.

27. Electronic Signature

This Agreement may be executed and accepted electronically. Contractor acknowledges that electronic acceptance, including via the DeliverMee app or digital signature platform, shall have the same force and effect as a handwritten signature and shall be legally binding.

28. Return of Property

If DeliverMee provides Contractor with any physical property, including uniforms, identification, delivery bags, or signage, Contractor agrees to return all such items in good condition upon termination of this Agreement. Failure to return items may result in a replacement fee deducted from final payments.

29. Performance Standards

Contractor agrees to meet reasonable performance expectations set by DeliverMee, which may include punctuality, customer ratings, acceptance rates, and delivery completion metrics. Repeated failure to meet these standards may result in account suspension or termination of this Agreement.

30. Post-Termination Use of Platform IP

Upon termination of this Agreement, Contractor agrees to cease use of all DeliverMee trademarks, branding, logos, app access, and materials, and to delete any proprietary DeliverMee data or customer information in their possession. Continued use of DeliverMee's intellectual property after termination is strictly prohibited.

31. No Reimbursement of Expenses

Contractor acknowledges they are solely responsible for all expenses incurred in the course of performing services under this Agreement, including but not limited to fuel, maintenance, mobile data, tolls, parking, fines, or insurance deductibles. DeliverMee shall not reimburse any such expenses.

32. Acknowledgment

Contractor acknowledges that they have read and understood this Agreement, had the opportunity to seek independent legal advice, and agree to be bound by its terms. Contractor further acknowledges that no representations or promises outside this Agreement have been relied upon in entering into it.

33. Health and Safety Compliance

Contractor agrees to follow safe lifting techniques, secure loads properly, and use equipment (e.g., straps, dollies) when necessary. DeliverMee may provide guidance, but Contractor is solely responsible for their physical safety and any injuries sustained during service.

34. No Employment Relationship Created

Nothing in this Agreement or in the conduct of the parties shall be deemed to create a joint venture, partnership, or employment relationship. Contractor has no authority to bind DeliverMee in any manner or to represent themselves as an agent or employee of DeliverMee.

35. Suggestions and Improvements

Any ideas, feedback, or suggestions provided by Contractor regarding improvements to the DeliverMee Platform or operations shall become the sole property of DeliverMee, without any obligation of compensation or recognition.

36. Audit and Verification Rights

DeliverMee reserves the right to audit or verify Contractor's compliance with the requirements of this Agreement, including but not limited to vehicle registration, insurance coverage, licensing, and safety protocols. Contractor agrees to cooperate fully and provide documentation upon request.

37. Injunctive Relief

Contractor acknowledges that breach of confidentiality, intellectual property, or non-solicitation provisions may cause irreparable harm to DeliverMee, for which monetary damages may be inadequate. DeliverMee shall be entitled to seek injunctive or equitable relief in addition to any other remedies available by law.

38. Brand Use and Representation

If DeliverMee provides branding materials (e.g., shirts, magnets, decals), Contractor agrees to use them professionally and solely in connection with Platform services. Contractor shall not alter, misuse, or misrepresent DeliverMee branding or visual identity.

39. Immediate Termination for Misconduct

DeliverMee reserves the right to terminate this Agreement without notice if the Contractor engages in conduct that poses a safety risk, violates criminal law, or involves dishonesty, intoxication, or harassment in connection with delivery services.

40. Dispute Procedure for Deactivation or Account Issues

If Contractor's account is suspended, deactivated, or otherwise impacted, Contractor may request a formal review by submitting a written explanation within 5 business days of notice. DeliverMee will assess the claim in good faith and provide a response within 14 days. Nothing in this section limits DeliverMee's right to enforce platform standards or terminate this Agreement.

41. Accessibility Standards Compliance

Contractor agrees to treat all individuals with respect and dignity and comply with the Accessibility for Ontarians with Disabilities Act (AODA), including reasonable accommodation of individuals with disabilities during deliveries.

42. Social Media Conduct

Contractor agrees not to make public statements, posts, or comments on social media that disparage DeliverMee, its users, or partners. Contractor shall not misrepresent themselves as a company spokesperson or publish private customer or platform information.

43. Data Retention

Contractor acknowledges that DeliverMee may retain delivery records, photographic evidence, and activity logs in accordance with its data retention policy and applicable law, even after termination of this Agreement.

44. Tax Reporting Obligations

Contractor acknowledges they are solely responsible for all tax filings, including income and HST (if registered). DeliverMee may issue a T4A tax slip as required by the Canada Revenue Agency for annual payments totalling \$500 or more. Contractor agrees to provide accurate tax and business identification information.

45. No Subcontracting Without Consent

Contractor may not delegate or subcontract delivery services to another party without prior written consent from DeliverMee. Any unauthorized substitution may result in immediate termination and legal liability for violations of insurance, platform policies, or customer trust.

46. No Weapons or Hazardous Materials

Contractor agrees not to carry firearms, illegal weapons, or hazardous/dangerous materials while performing services through the Platform. Violations may result in immediate termination and referral to law enforcement if required.

47. Contractor Record-Keeping

Contractor agrees to maintain accurate records of their delivery activities, expenses, mileage, and income for tax, insurance, and business purposes. DeliverMee may request confirmation of such records for compliance reviews.

48. Survival of Key Terms

Sections regarding Intellectual Property, Confidentiality, Indemnification, Non-Solicitation, Limitation of Liability, and Dispute Resolution shall survive the termination or expiration of this Agreement.

49. Internal Feedback and Incident Reporting

Contractor is encouraged to report any suspected safety violations, customer misconduct, harassment, fraud, or technical issues to DeliverMee via the designated feedback or support channel. DeliverMee will review all reports confidentially and take appropriate action as needed.

50. Anti-Harassment and Non-Discrimination Policy

Contractor agrees to refrain from any form of harassment, discrimination, or abusive behavior toward customers, other contractors, or DeliverMee representatives. Violations of this policy are grounds for immediate termination and may be referred to appropriate authorities.

51. No Guarantee of Work or Hours

Contractor acknowledges that DeliverMee does not guarantee any specific volume of work or earnings potential, and the number of available jobs may fluctuate.

52. Image and Likeness Release

Contractor grants DeliverMee the right to use their name, likeness, voice, or image (e.g., from profile photos, testimonials, or recorded content) in promotional, operational, or training materials, provided such use is respectful and lawful. Contractors may opt out of marketing use by written request.

53. Policy Updates and Continued Use

Contractor agrees to comply with any updated operational policies, feature requirements, or legal notices issued by DeliverMee. Continued use of the Platform after such updates shall constitute acknowledgment and agreement to the revised terms.

53.1 Changes to Platform

DeliverMee may modify, suspend, or discontinue any aspect of the Platform at any time, provided such changes do not materially alter the Contractor's ability to perform services agreed to under this Agreement.

54. Right to Refuse Unsafe Deliveries

Contractor may decline any delivery they reasonably believe to be unsafe, unlawful, or beyond the physical limitations of their vehicle. DeliverMee will not penalize Contractors for good-faith refusals of such assignments.

55. Electronic Signature and Acceptance

The parties agree that this Agreement may be signed electronically and that such signatures shall be legally binding. Use of the DeliverMee Platform constitutes acceptance of these terms, even in the absence of a physical signature.

56. Audit and Compliance Cooperation

Contractor agrees to cooperate with any audit or review conducted by DeliverMee or its partners, including providing delivery records, insurance documents, or tax-related filings as needed to comply with applicable law or insurance requirements.

57. Governing Language

This Agreement is written in English and shall be interpreted and enforced accordingly. Any translated versions are provided for convenience only.

58. Legal Work Eligibility

Contractor represents that they are legally authorized to work in Canada and will immediately notify DeliverMee of any change in immigration or employment status. DeliverMee may require proof of eligibility at any time.

59. No Employer-Employee Relationship

Contractor agrees not to represent themselves as an employee of DeliverMee or request employment-related benefits. Contractor shall maintain control over their work schedule, methods, and routes, subject only to the requirements necessary to use the Platform.

60. Performance Standards and Platform Ratings

Contractor understands that access to the Platform may be contingent on maintaining customer satisfaction, timely delivery, and platform ratings. DeliverMee reserves the right to limit or suspend access for Contractors whose performance consistently falls below platform standards

61. Branding and Identification

If DeliverMee provides branding materials (e.g., car magnets, signs, or shirts), use of such items is optional and does not imply employment. Branding may only be used while actively performing a delivery job. Misuse may result in removal from the Platform.

62. Death or Incapacity

In the event of the Contractor's death or incapacity, this Agreement shall terminate automatically. Outstanding payments earned up to the date of death or incapacity shall be made to the Contractor's estate or legal representative upon receipt of proper documentation.

63. Geographic Scope of Services

The Contractor acknowledges and agrees that all delivery services performed through the DeliverMee platform shall be conducted **exclusively within the Province of Ontario, Canada**. The Contractor shall not accept or perform any delivery request that requires travel outside Ontario. DeliverMee reserves the right to suspend or terminate the Contractor's access to the platform for failure to comply with this restriction.